



U.S. Department
of Transportation

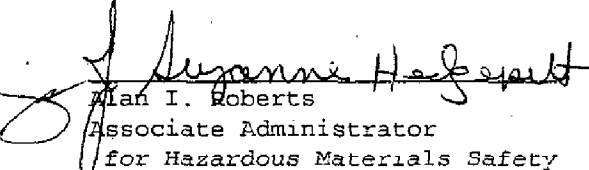
**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9220 (EXTENSION)
ORIGINAL April 5, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9220 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Custom Packaging Systems, Inc.
Manistee, MI

September 23, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 9220

1. Custom Packaging Systems, Inc., Manistee, Michigan, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the corrosive solids and oxidizers described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of large, collapsible polyethylene-lined woven polypropylene bulk bags having a capacity of approximately 3,000 pounds each, for shipment of corrosive solids and oxidizers, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Custom Packaging, Incorporated's application dated January 17, 1984, and supplemental letters dated April 9 and April 30, 1984, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Ammonium nitrate fertilizer, classed as oxidizer; other Oxidizers and Corrosive solids specifically identified to, and acknowledged in writing by, this office prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). Ammonium nitrate fertilizer; oxidizer, n.o.s.; corrosive solid, n.o.s.; or the specific chemical name, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.182; 173.217; 173.245b.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification collapsible flexible bag, disposable bulk container. Bag is fabricated of woven polypropylene, with a form-fitting lining of linear low-density polyethylene film of 0.003-inch minimum thickness and a capacity of not over 3,000 pounds, and is constructed in two alternate designs:

(i) With four corner slings;

(ii) With central lifting straps fitted with plastic "tunnel". Bag, prepared as for shipment, must be capable of satisfactorily withstanding: Free-fall drop tests (three from a height of four feet); Jerk test; Topple test; Topple and Drag test; Righting test; Abrasion test; as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers" recommended by the Chemical Packaging Committee of the Packaging Institute, U.S.A. (PI/USA), dated October 3, 1983, and as further shown in applicant's 8mm movie and letter dated April 30, 1984.

8. SPECIAL PROVISIONS.

- a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.
- b. Shipment by highway and cargo vessel must be in closed vehicles or freight containers, in full truckload or container-load lots only, except that ammonium nitrate fertilizer need not be in closed vehicles.
- c. Shipment by rail must be in DF box cars except that COFC or TOFC service is authorized in accordance with 49 CFR 174.61.
- d. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
- e. The marking requirements of Section 172.301 must be complied with.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. February 15, 1987.

Issued at Washington, D.C.



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

APR 5 1985

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA